

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIFTH SECTION

CASE OF MASLOVA AND OTHERS v. RUSSIA

(Applications nos. 62807/09 and 10 others
see appended list)

JUDGMENT

STRASBOURG

11 January 2024

This judgment is final but it may be subject to editorial revision.



In the case of Maslova and Others v. Russia,

The European Court of Human Rights (Fifth Section), sitting as a Committee composed of:

María Elósegui*, President*,
Mattias Guyomar,
Kateřina Šimáčková*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 7 December 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

3. The Ukrainian Government were invited to intervene as third party in the proceedings in application no. 77068/14. They exercised their right to do so.

4. On 16 December 2014 the Court applied interim measure in application no. 77068/14 and gave it priority (under Rules 39 and 41 of the Rules of Court). On 4 October 2021 the interim measure was lifted.

THE FACTS

5. The list of applicants and the relevant details of the applications are set out in the appended table.

6. The applicants complained of the torture or inhuman or degrading treatment. Some applicants also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

7. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

8. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the

Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. *LOCUS STANDI*

9. Following the death of the applicant Mr Lyapin (application no. 43701/18) his wife Ms Liliya Viktorovna Lyapina expressed her wish to pursue the applications on behalf of the deceased applicant. The Government did not object.

10. The Court has accepted that in applications concerning Article 3 of the Convention, a close relative of the deceased applicant has standing to pursue the application (see *Magnitskiy and Others v. Russia*, nos. 32631/09 and 53799/12, § 176, 27 August 2019, with further references).

11. In the light of the above, the Court accepts that Ms Lyapina has a legitimate interest in pursuing the applications in place of her deceased husband. It will therefore continue to deal with the case at her request. For convenience, however, it will continue to refer to Mr Lyapin as the applicant in the present judgment.

IV. THE GOVERNMENT'S REQUEST TO STRIKE OUT THE APPLICATION UNDER ARTICLE 37 § 1 OF THE CONVENTION

12. The Government submitted unilateral declaration in application no. 53373/14 whereby they acknowledged violations of Articles 3 and 5 of the Convention in respect of the applicant and offered to pay him a sum of money.

13. The applicant rejected the Government's proposals.

14. Considering the circumstances of the case at hand, the Court rejects the Government's request to strike the application out and will accordingly pursue its examination (see *Tahsin Acar v. Turkey* (preliminary issue) [GC], no. 26307/95, § 75, ECHR 2003-VI).

V. ALLEGED VIOLATION OF ARTICLE 3 OF THE CONVENTION

15. The applicants complained principally of the torture or inhuman or degrading treatment and the lack of an effective investigation into the instances of ill-treatment. They relied, expressly or in substance, on Article 3 of the Convention.

16. The Court held in *Bouyid v. Belgium* ([GC], no. 23380/09, §§ 81-90 and 114-23, ECHR 2015), that presumptions of fact was in favour of applicants claiming to be victims of a violation of Article 3 of the Convention, if they demonstrate that the alleged ill-treatment was inflicted when they were

under the control of the police or a similar authority. Moreover, in the context of detainees, the Court has emphasised that persons in detention are in a vulnerable position and that the authorities have a duty to protect their physical well-being and that any recourse to physical force which has not been made strictly necessary by the applicants' own conduct diminishes human dignity and is in principle constitutes a violation of the right enshrined in Article 3 of the Convention (see *Sheydayev v. Russia*, no. 65859/01, § 59, 7 December 2006). The burden of proof rests on the Government to show that the use of force, which resulted in the applicants' injuries, was not excessive (see, for example, *Dzwonkowski v. Poland*, no. 46702/99, § 51, 12 April 2007, and compare with *Kursish and Others v. Russia* [Committee], nos. 62003/08 and 5 others, § 84, 5 July 2022).

17. Furthermore, in the cases of *Lyapin v. Russia,* no. 46956/09, §§ 128-40, 24 July 2014, and *Samesov v. Russia,* no. 57269/14, §§ 54-63, 20 November 2018, as well as in *Kuchta and Mętel v. Poland*, no. 76813/16, § 88, 2 September 2021, the Court has already found, in particular, that the authorities' refusal to open a fully-fledged criminal investigation into the credible allegations of ill-treatment, as well as the lack of assessment of the necessity and proportionality of the use of lawful force by the police were indicative of the State's failure to fulfil its procedural obligation under Article 3 of the Convention. This is all the more so in the cases where the authorities have refused to either carry-out an official inquiry into the applicants' allegations or officially register the applicants' complaints (see the appended table).

18. The Court further finds the remaining complaints admissible and observes that there has been a violation of the substantive and procedural limbs of Article 3 of the Convention in all the applications, with the exception of the applicants in applications nos. 62807/09 and 43701/18, in respect of whom it finds only a violation of the procedural limb of that provision.

VI. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

19. In applications nos. 53373/14, 77068/14, 23922/20 and 53881/20 the applicants submitted other complaints which, in the light of the Court's established case-law, also raised issues under the Convention, including a complaint under Article 6 of the Convention concerning the use for conviction of self-incriminating statements obtained as a result of torture or ill-treatment (see attached table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its findings in *Ksenz and Others v. Russia*, nos. 45044/06 and 5 others,

§§ 111-12, 12 December 2017, *Turbylev v. Russia,* no. 4722/09, § 90, 6 October 2015, *Belugin v. Russia*, no. 2991/06, § 70, 26 November 2019, *Aleksandr Konovalov v. Russia,* no. 39708/07, §§ 13-14 and 54, 28 November 2017, *Yaroslav Belousov v. Russia*, nos. 2653/13 and 60980/14, §§ 145-54, 4 October 2016, *Fortalnov and Others v. Russia*, nos. 7077/06 and 12 others, §§ 76-79, 26 June 2018, and *Zakharov and Varzhabetyan v. Russia*, nos. 35880/14 and 75926/17, §§ 74-76, 13 October 2020.

20. In addition, some applicants complained under Article 6 of Convention of various breaches of their right to a fair trial. However, in the light of its findings above, the Court considers that it has examined the main legal issues raised in the applications and that there is no need to rule separately on the remaining complaints (see *Turbylev*, cited above, §§ 92-97, *Centre for Legal Resources on behalf of Valentin Câmpeanu v. Romania* [GC], no. 47848/08, § 156, ECHR 2014, *Nevzlin v. Russia*, no. 26679/08, § 191, 18 January 2022 and *Kutayev v. Russia*, no. 17912/15, § 110, 24 January 2023).

21. Finally, the applicants in applications nos. 62807/09, 43701/18, 19125/20, 26735/20 and 3034/22 also submitted complaints under Article 13 of the Convention. These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. They must therefore be declared admissible. Having examined all the material before it, the Court concludes that there is no need to examine them separately in the light of its findings under Article 3 of the Convention (see *Aleksandr Andreyev v. Russia*, no. 2281/06, § 71, 23 February 2016, and *Leonid Petrov v. Russia*, no. 52783/08, § 86, 11 October 2016).

VII. REMAINING COMPLAINTS

22. The applicant in application no. 77068/14 also raised other complaints under various Convention provisions.

23. The Court has examined these complaints and considers that, in the light of all the material in its possession and in so far as the matters complained of are within its competence, they either do not meet the admissibility criteria set out in Articles 34 and 35 of the Convention or do not disclose any appearance of a violation of the rights and freedoms enshrined in the Convention or the Protocols thereto.

24. It follows that this part of the application must be rejected in accordance with Article 35 § 4 of the Convention.

VIII. APPLICATION OF ARTICLE 41 OF THE CONVENTION

25. Having regard to the documents in its possession and to its case-law (see *Ksenz and Others*, cited above, § 120; and, for similar situations,

Zagaynov and Others v. Russia [Committee], nos. 5666/07 and 4 others, 15 June 2021, and *Dauberkov and Others v. Russia* [Committee], nos. 60844/11 and 2 others, § 64, 22 March 2022), and making its assessment on an equitable basis (see *Bouyid*, cited above, § 138) the Court considers it appropriate to award the sums indicated in the appended table and dismisses the remainder of the applicants' claims for just satisfaction.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to facts that took place before 16 September 2022;

3. *Declares* that Ms Liliya Viktorovna Lyapina has standing to pursue application no. 43701/18 in the stead of the late applicant Mr Lyapin;

4. *Rejects* the Government's request to strike application no. 53373/14 out of its list of cases under Article 37 § 1 of the Convention on the basis of the unilateral declaration which they submitted;

5. *Declares* the complaints concerning the torture or inhuman or degrading treatment, and the failure to investigate the allegations of the ill-treatment, and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, *finds* that there is no need for a separate examination of the applicants' remaining complaints under Article 6 of the Convention, and *dismisses* the remainder of application no. 77068/14 as inadmissible;

6. *Holds* that these complaints disclose a breach of both the substantive and procedural limbs of Article 3 of the Convention concerning the torture or inhuman or degrading treatment, with the exception of the applicants in applications nos. 62807/09 and 43701/18, in respect of whom it finds only a violation of the procedural limb of that provision;

7. *Holds* that there has been a violation of the Convention as regards the other complaints raised under the well-established case-law of the Court (see appended table);

8. *Holds*

(a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points;

9. *Dismisses* the remainder of the applicants' claims for just satisfaction.

Done in English, and notified in writing on 11 January 2024, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	María Elósegui
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 3 of the Convention (torture or inhuman or degrading treatment)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Factual information	Medical evidence of ill-treatment	Date of first complaint Decision issued in response to complaint of ill-treatment	Decision under Article 125 of the CCrP Appeal decision	Information relating to conviction	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	62807/09 20/11/2009	**Olga Yuryevna MASLOVA** 1980	Ryzhov Anton Igorevich Nizhniy Novgorod	The present case is a follow up complaint lodged by the applicant following the first judgment delivered by the Court in Maslova and Nalbandov v. Russia, no. 839/02, 24 January 2008. The Court found violations of the substantive and procedural limbs of Article 3 of the Convention on account of the applicant's repeated rape and various other forms of ill-treatment to which she was subjected on 25/11/1999 by policeman Kh. and prosecution investigative officers Zh., S. and M. of the prosecutor's office for the Nizhegorodskiy District in Nizhniy Novgorod and the authorities' failure to investigate it effectively.	See Maslova and Nalbandov v. Russia no. 839/02, 24 January 2008, §§ 39-48.	Events after the delivery of the Court's judgment On 03/12/2008 the decision of 21/11/2005 suspending the investigation was overruled and the investigation resumed, but on 04/12/2008 it was suspended again. On 25/11/2009 a ten-years' statutory time-limit for prosecution of the defendants expired and on unspecified date the investigation into the applicant's ill-treatment was discontinued on that ground. The Government did not contest the facts.	On 25/11/2009 a ten-years' statutory time-limit for prosecution of the defendants expired and on unspecified date the investigation was discontinued on that ground.			20,000

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				In the present case the applicant complained that the respondent State had delayed the investigation in her criminal case against the State officials until it could be discontinued due to the expiry of the statutory time-limits for the prosecution in breach of Article 3. (compare with V.D. v. Croatia (no. 2), no. 19421/15, §§ 51-52, 15 November 2018; Gheorghe Cobzaru v. Romania [Committee], no. 21171/16, §§ 28-29, 7 May 2020).					
2.	53373/14 18/07/2014	**Aleksandr Alekseyevich ZHDAN** 1970	Crew Against Torture Nizhniy Novgorod	At 9 a.m. on 22/01/2009 the applicant was taken to the Orenburg town police department on suspicion of car theft; his lawyer was not allowed to see him. Police officers handcuffed him and subjected him to beatings, suffocation using a gas mask, and electrocution on various parts of his body. The ill-treatment lasted for about nine hours until he suffered a stroke: drooling on the right side of his	Hospital record no. 69 of 22/01/2009: the applicant could not speak, did not understand speech addressed to him; his right limbs lost function; he had abrasions on both forearms. The Orenburg Regional Forensic Bureau's report	On 29/01/2009 complaint to the Orenburg town investigative committee/Between 2009 and 2013 eleven refusals to open a criminal case for lack of the elements of a crime in the police officers' actions, each refusal overruled by the investigators'	The applicant appealed against the refusals to the Leninskiy District Court in Orenburg which found the refusals unlawful and unsubstantiated, noting a failure to give any assessment to the applicant's injuries, to the lawfulness of his		Art. 5 (1) - unlawful detention – from 9 a.m. on 22/01/2009 to 7.25 p.m. on 22/01/2009; unrecorded detention of a suspect by the police (see Leonid Petrov v. Russia, no. 52783/08, §§	80,000

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				mouth, could not speak and was unable to walk. At 7.25 p.m. the officers took the applicant to the Pirogov hospital in Orenburg, where he was initially in the ER for seven days and then treated for two months. As a result of the ill-treatment, the applicant never fully recovered: could not speak for three years, partially regained his speech and ability to walk. He acquired a "second degree" permanent disability and in 2015 still suffered from a post-traumatic stress disorder requiring regular rehabilitation treatment.	no. 1481 upon the examination carried out on 25/02/2009: the applicant had two scars on each hand, two scars on the left hip and three pairs of similar scars on his back. According to the applicant, on 22/01/2009 police officers had tied his hands and legs and subjected him to electric shocks and asphyxiation by use of a gas mask. The expert concluded that there were two explanations for the origin of the scars: the wounds could have been inflicted either by hard blunt objects or as a result of electric shocks, about 30-45 days prior to the examination. The abrasion on the applicant's right	superiors/Last refusal on 09/04/2013. On 09/01/2014 the applicant complained to the superiors of the Orenburg investigative committee about the latter's failure to conduct an investigation/ No reply given. On 19/03/2014 a criminal case into the applicant's alleged ill-treatment by police was opened under Article 286 § 3 (a) of the Criminal Code (abuse of authority). Other than the applicant's statement on 15/04/2014 that he could identify two of the police officers who had tortured him, no investigative steps were taken.	detention or the restriction of his right of access to a lawyer (decisions of 16/08/2010 and 11/11/2011). The court criticised the practice of issuing refusals to open a criminal case without a proper inquiry and then revoking them during the period from 21/01/2009 to 10/02/2012 as unlawful, holding that as a result the applicant's complaint had not been examined within reasonable time and the decision whether to open a criminal case had been unlawfully delayed (decision of 10/02/2012). In 2013 the court delivered four		54-55, 11 October 2016)	

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					forearm had originated from an impact with a hard blunt object. The expert was unable to establish the direct causal relation between the scars or the abrasion and the applicant's stroke. In her additional report no. 6825 of 19/09/2009 the expert reiterated her previous conclusions.		decisions in which it found the inactivity of the head of the Orenburg investigative committee – in issuing refusals to open a criminal case and failing to notify them to the applicant's representatives – unlawful (decisions of 24/01/2013, 14/03/2013, 24/06/2013 and 09/12/2013). On 20/03/2014 the Leninskiy District Court examined the applicant's complaint that the head of the Orenburg regional investigative committee had failed to act in response to his complaint of 09/01/2014. The			

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							court found that the persistent failure to comply with the court's previous decisions constituted a malicious non-enforcement of court decisions by a state official; and that the failure of the head of the regional investigative committee to conduct an inquiry and take a procedural decision was unlawful.			
3.	77068/14 12/12/2014	**Mykola Andronovych KARPYUK** 1964	Volkova Nadiya Kyiv; Ms Kate Levine, Mr Philip Leach and Mr Dokka Itslayev from EHRAC	According to the applicant, he was tortured in order to obtain his confession to crimes during his detention in IVS no. 1 in Vladikavkaz, Republic of North Ossetia-Alania, between 21/03/2014 and 25/03/2014. During the daytime he was held in a one-sq. m cage in a room where a guard was constantly present and prevented him from	The applicant had no injuries when examined at the IVS of the Essentuki police department on 21/03/2014 before the alleged torture. The applicant was examined by forensic medical experts twice. On 21/03/2014 (at the	On 08/10/2015 complaint to the Investigative Committee of the Russian Federation after the applicant had received access to a lawyer of his own choosing following the period of detention without contacts with the	On 18/02/2016 the Essentuki Town Court decided not to examine the applicant's appeal against the refusal of 11/01/2016 on the grounds that his complaints would be examined at the ongoing trial in his	On 26/05/2016 the Supreme Court of the Chechen Republic convicted the applicant of organising and leading an armed group which had carried out attacks, killing and wounding the	Art. 6 (1) - unfair criminal proceedings – in view of the use of the applicant's self-incriminating statements obtained as a result of torture for his conviction (see Turbylev	30,000, in respect of non-pecuniary damage to the applicant; Costs and expenses: EUR 717 to Ms Levine and

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				falling asleep. During the night-time he was taken to an unknown location, handcuffed and blindfolded with a plastic bag tightly secured with a scotch tape. He was subjected to electric shocks through wires and clips attached to a finger on the right hand and a toe on the right foot. After threats to kidnap and torture his child and wife the applicant agreed to give confession statements as dictated.	IVS of the Essentuki police department before the alleged torture) no recent injuries were found and old scars present on the body were recorded in detail (report of 01/04/2014). On 04/12/2015 new scars were recorded: two scars on the back side of the right hand (one at the base of the metacarpal bone of the index finger and another above it) and a scar on the second toe on the right foot, the nature of which or whether they had been received in March 2014 was not possible to establish according to the expert (report of 09/12/2015).	family and the Ukrainian consulate/ On 12/10/2015 the applicant also complained about torture before the trial court. On 11/01/2016 the North-Caucasian regional investigative committee refused to open a criminal case for the lack of the event of a crime.	criminal case before the Supreme Court of the Chechen Republic. The applicant's many complaints, in particular of 24/02/2016, 04/04/2016 and 20/04/2016 about the lack of an effective investigation and his requests to declare the investigator's decision of 11/01/2016 unlawful and unfounded and to declare his statements given as a result of torture inadmissible evidence, as well as his request of 13/04/2016 to order an additional forensic medical examination by independent experts (based on forensic	Russian servicemen in Chechnya in December 1994 - January 1995, and sentenced him to twenty-two and a half years' imprisonment. The conviction was based, inter alia, on his confession statements allegedly made as a result of torture and in the absence of proper legal assistance (records of his examination as a suspect of 28/03/2014 and 29/03/2014 and records of his examination as an accused before gaining access to a lawyer of his own choosing in September 2015 at the beginning of the trial). On	v. Russia, no. 4722/09, §§ 92-97, 6 October 2015).	Mr Leach from EHRAC; EUR 4,253 to Ms Volkova; EUR 3,784 to Mr Itslayev and EUR 2,450 for administrative and translation expenses incurred by EHRAC. The award in respect of costs and expenses is to be paid directly to the applicant's representatives' bank accounts as requested by him.

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							medical experts' statements at the trial about the possibility to determine whether the scars had been the result of his alleged torture by electric shocks), were rejected by the presiding judge.	26/10/2016 the Supreme Court of Russia dismissed the applicant's appeal (on the grounds of his torture and conviction based on his confession statements obtained as a result of torture and in the absence of proper legal assistance despite his requests to declare them inadmissible evidence) and upheld the judgment. On 07/09/2019 the applicant was released as part of the exchange of prisoners between Russia and Ukraine.		
4.	43701/18 03/09/2018	**Sergey Vladimirovich LYAPIN** 1964	Vanslova Yekaterina Nizhniy Novgorod	The present case is a follow-up complaint lodged by the applicant following the first judgment delivered by the Court in his case	Lyapin v. Russia, no. 46956/09, §§ 30-41, 24 July 2014.	Events after the delivery of the Court's judgment: On 16/06/2015 the refusal of 15/07/2009	On 12/04/2018 the criminal case against police officer S. was registered at the			20,000

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		Deceased in December 2019 Heir: Ms Liliya Viktorovna Lyapina		of Lyapin v. Russia, no. 46956/09, 24 July 2014. The Court found violations of the substantive and procedural limbs of Article 3 of the Convention on account of the applicant's ill-treatment in police custody by State officials and the authorities' failure to investigate it effectively. Events before the delivery of the Court's judgment Arrested on 25/04/2008 and taken to the Volodarskiy District police station in the Nizhniy Novgorod, the applicant was ill-treated by police officers K. and S. to obtain confession to thefts: he was gagged, tied up with a rope, punched, kicked, and subjected to electric shocks for almost 12 hours. Although the investigative committee carried out a pre-investigation inquiry into his injuries, it refused on 10 occasions to open a criminal case, which would have allowed the investigators to use the full range of investigative measures available and the applicant's		was overruled upon the applicant's request and a new inquiry was ordered/ Between 16/06/2015 and 09/03/2016 four refusals to open a criminal case/On 16/03/2016 a criminal case into the applicant's ill-treatment by police was opened under Article 286 § 3 (a), (b) of the Criminal Code (abuse of authority). On 16/11/2016 the investigation was suspended for the failure to identify the perpetrators, then resumed. Several similar decisions to suspend and resumed the investigation ensued. Latest suspension of 14/09/2017 was overruled on 02/11/2018. On 02/11/2017 the investigators indicted police officers K. and S.	Volodarskiy District Court. On 17/05/2018 the court conducted a hearing during which S. requested to terminate criminal proceedings against him due to the expiry of a ten-years' statutory time-limit for prosecution. The court confirmed that the time-limit expired on 26/04/2017 and discontinued the criminal proceedings against officer S. According to the applicant, criminal proceedings against K. continued to be pending. However, K. was not suspended from service.			

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				appeals against those refusals were to no avail. In the present case the applicant complains that the respondent State had delayed the investigation in his criminal case against the State officials until it could be discontinued due to the expiry of the statutory time-limit for the prosecution in breach of Article 3.		on the charges of the abuse of power and infliction of the applicant's injuries. On 07/12/2017, 09/01/2018 and 09/02/2018 the bill of indictment was returned to the investigators due to procedural and substantive shortcomings. On 04/04/2018 the criminal case was transferred to the Volodarskiy District Court for trial.	It appears from the Notes on the Agenda of the Committee of Ministers for its 1362nd meeting of 3-5 December 2019, which included supervision of the execution of the Court's first judgment, that the second suspect K. was convicted and given a suspended sentence in view of, in particular, "the character of the defendant, his property and marital status", and "taking into account the aims and motives of the crime committed".			
5.	19125/20 07/05/2020	**Victor LUKYAN** 1976	Sadovskaya Olga Aleksandrovna Nizhniy Novgorod	In the early hours on 25/05/2018 the applicant was arrested at his home in Domodedovo, Moscow Region, by police officers from	Forensic medical examination act no. 182 of 11/06/2018 on the applicant's	On an unspecified date shortly after 25/05/0218 complaint to the investigator in charge of	On 02/03/2020 the applicant challenged the last refusal before the	On 26/06/2019 the applicant was convicted of murder by the Domodedovo		26,000

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				the Barybino police station and then he spent the night in the station's temporary detention cell. In the morning, he was taken by the police officers to a garage on the premises of the station where officer G. assisted by a certain A. tied his arms and legs to a metal chair and subjected him to electric shocks for approximately 30 minutes with a view to obtaining a confession to a murder. The applicant was beaten on the face and legs, while his arms and legs were tied, and a plastic bag was placed over his head. He lost consciousness twice. He was forced to sign a self-incriminating statement.	examination carried out on 26/05/2018 by the Domodedovo Forensic Bureau: a bruise on the left eyelid; a bruised abrasion on the left cheekbone and extending to the pinna; bruises on the front and back sides of the wrists; bruise on the back of the middle third of the right forearm; bruise on the back of the low third of the left hip; bruise in the area of the external surface of the left ankle. The injuries could have been inflicted within 1-3 days prior to the date of the examination. Certificate on admission to remand prison on 29/05/2018: hematoma of the left eye orbit; an old yellow bruise with	his criminal case / Refusal to open a criminal case on 05/07/2018, 27/02/2019, 17/07/2019, 15/11/2019. Each time, the investigator's superior overruled the refusals and referred the case for an additional inquiry (shortcomings identified: failure to identify the police officer who assisted G. in the garage, failure to locate this place and to question the forensic medical doctor). The police officers indicated that they had had to use force and to push the applicant down to the floor and to handcuff him in response to his resisting the arrest. The refusals notably referred to the results of the forensic medical examination, whose findings were not consistent with the	Babushkinskiy District Court in Moscow/On 23/04/2020 the court terminated the proceedings as the impugned refusal had been overruled by the investigator's superior on 20/04/2020.	City Court in the Moscow Region and sentenced to six years of imprisonment.		

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					oedema under the left orbit.	applicant's version of the events.				
6.	23922/20 15/06/2020	**Nikolay Vladimirovich ANDREICHEV** 1982	Crew Against Torture Nizhniy Nogorod	On 27/07/2019 the applicant participated in the manifestation for fair elections to Moscow Duma, when he was beaten by police officers in the Tverskoy District in Moscow.	Forensic medical examination no. 071-2019 of 08/01/2020 by the Moscow Forensic Bureau: the below injuries could have been sustained by the applicant in the described circumstances - certificate of 28/07/2019 by the Pirogov City Hospital no. 1: closed fracture of the external epicondyle of the left shoulder without dislocation; Medical Card Extract no. 64910/551 of 28/07/2019 by the Pirogov City Hospital No. 1: bruising of the left elbow joint, hemarthrosis of the	On 21/08/2019 complaint to the Moscow Investigative Committee / the applicant alleges that officer I. refused to acknowledge receipt of the complaint. Then on 27/08/2019 complaint to the Moscow police/ on 28/08/2019 the complaint transferred to the Investigative Committee; on 10/09/2019 the complaint retuned to the police/ No further information given to the applicant, no inquiry opened into the matter.	On 17/09/2019 the Basmanniy District Court of Moscow refused to examine the applicant's complaint for the lack of subject matter/ Upheld on appeal by the Moscow City Court on 24/12/2019. On 09/10/2019 the Presnenskiy District Court again refused to examine the applicant's complaint (contesting the transfer of his complaints of 10/09/2019 and inaction of the investigation) for the lack of subject matter/ Upheld on appeal by the	Final decision on 16/12/2019 by the Moscow City Court – convicting the applicant under article 20.2 § 6.1 of CAO, and sentence to a fine of RUB 20,000	Art. 11 (1) - various restrictions on the right to freedom of peaceful assembly - Manifestation in support of fair elections to Moscow Duma in Moscow on 27/07/2019; article 20.2 § 6.1 of CAO; administrative fine of RUB 20,000; Moscow City Court, 16/12/2019, Art. 5 (1) - unlawful detention - 27/07/2019 at around 9.00 p.m. - 28/07/2019 at	16,000

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					left elbow joint; closed fracture of the external epicondyle of the left shoulder without dislocation. Ambulance certificate no. 919672627 of 28/07/2019 (bruising of the left elbow joint, hemarthrosis of the left elbow joint). Medical Certificate no. 1388 of 23/08/2019 by City Hospital no. 62: closed marginal fracture of the external epicondyle of the left humerus with slight dislocation.		Moscow City Court on 16/12/2019.		01.20 a.m.; Applicant taken to the police station as an administrative suspect: no evidence / assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019),	

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									Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Moscow City Court, 16/12/2019; administrative fine of RUB 20,000.	
7.	26735/20 08/04/2020	**Kirill Maksimovich BELOUSOV** 1993	Bayturina Svetlana Nikolayevna Moscow	On 27/07/2019 the applicant was solo picketing with a poster in support of the free elections to Moscow Duma, when he was arrested by police officers of the Dorgomilovskiy district police station in Moscow. The police officers used force to carry him to the police bus, intentionally hit his head and right shoulder against the side of the bus and forcibly put him in the vehicle. The applicant did not resist the arrest.	Certificate no. 15047 of 29/07/2019 by the emergency room of Mytishchi town hospital: soft tissue bruising to the head and right shoulder joint. Certificate of medical examination of 03/08/2019 by a neurologist of the Moscow Medical Research Centre: brain concussion.	On 07/08/2019 complaint to the Tverskoy District Investigative Committee in Moscow/on 07/08/2019 refusal to register a crime report and institute an inquiry.	On 02/09/2019 the Tverskoy District Court of Moscow rejected the applicant's complaint against the inaction of the investigating authorities for the lack of the subject matter as no inquiry had been carried out/Upheld on 09/10/2019 by the Moscow City Court.	No relevant information		16,000

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8.	53881/20 03/02/2020	**Maksim Aleksandrovich GRISHENKOV** 1985	Toreyeva Svetlana Anatolyevna Moscow	On 03/08/2019 the applicant was present at the manifestation for the fair elections to Moscow Duma in Moscow, when he saw several police officers beating a man lying on the ground. The applicant attempted to protect that man and got beaten up by rubber truncheons. The applicant was arrested. The beating was filmed on video.	Medical Certificate no. 9018 04/08/2019 by the Pushkinskiy District Hospital in Pushkino: bruises and abrasions of the lower limbs. Medical Certificate no. 25342-19 of 04/08/2019 by the emergency room of the Eramishantsev Town Hospital: soft tissue contusions to both knees, abrasions to both shins. Medical Certificate of 05/08/2019 by the emergency room of City Hospital no.3 in Moscow: soft tissue contusions to the right shoulder, contusions and abrasions to both shins.	On 12/08/2019 complaint to the Moscow Investigative Committee / The applicant received no reply and no inquiry into the matter was opened.	On 18/12/2019 the Presnenskiy District Court of Moscow dismissed the applicant's complaint on formal grounds, as the applicant contested inactions of the Investigative Committee whereas the complaint had been transferred for examination to the police/ On 17/02/2020 upheld by the Moscow City Court. Domestic courts neither examined the steps taken nor addressed the issue of their effectiveness.	On 20/08/2019 the Taganskiy District Court of Moscow convicted the applicant under article 20.2 § 5 of CAO and sentenced him to community service of 30 hours.	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – final decision of the Moscow City Court, 30/06/2020; community service, of 30 hours, Art. 5 (1) - unlawful detention – arrested on 03/08/2019 at 5.00 p.m. and detained until 04/08/2019 at 2.00 a.m.; Applicant taken to the police station as an	16,000

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									administrative suspect: no evidence / assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019), Detention as an administrative suspect: beyond the three-hour	

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									statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018), Art. 11 (1) - various restrictions on the right to freedom of peaceful assembly - Manifestation in support of the fair elections to Mosgorduma in Moscow on 03/08/2019. article 20.2 § 5 of CAO; community service of 30 hours; final decision by the Moscow City Court, on 30/06/2020	

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9.	53488/21 01/10/2021	**Ivan Viktorovich LYUBSHIN** 1982	Molokanova Tatyana Valeryevna Moscow	At 7 a.m. on 15/10/2019 the applicant was arrested on the street by agents of the Kaluga Department of the Federal Security Service (FSB). He was handcuffed, thrown into a minivan and beaten. According to the applicant, the FSB officers also subjected him to electric shocks with a view to obtaining confession. They took him to a forest where beatings continued. At 9.30 a.m. he was taken to an investigator at the Kaluga Investigative Committee, where a record of his arrest was drawn up.	Forensic report no. 3601/3135 of 15/10/2019 by the Kaluga Forensic Bureau: bruises on the left ear; bruises on the write and left wrist; superficial contusion in the area of the first finger of the right hand; three bruises on the left shoulder; bruising of the right elbow joint; six bruises on the back of his left shoulder and of his chest to the left; four bruises on the left side of the lumbar area; an injury in the area of the write tibia. The injuries may have been caused 1 to 3 days prior to the examination. Similar injuries were recorded by the IVS staff on 15/10/2019 and later in the evening on the same	On 21/10/2019 and 16/10/2019 complaints to the Kaluga Investigative Committee / Refusal to open a criminal case on 09/12/2019 (the applicant's statements on the origin of his injuries varied, no electrocution burns found by the examination, the FSB officers involved in the applicant's arrest denied use of force, the forensic report indicated that the injuries may have been caused between 1 and 3 days before the arrest, thus contradicting the applicant's allegations that they had been inflicted just few hours before the examination, etc.).	After several rounds of proceedings, on 29/01/2021 the Kaluga Garrison Military Court upheld the last refusal to open a criminal case/ that decision was upheld by the Second Western Circuit Military Court on 06/04/2021.	.		26,000

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					date by an ambulance doctor who examined the applicant in the IVS (no specific details, no documents of that examination provided).					
10.	61520/21 15/12/2021	**Yevgeniy Aleksandrovich BUNIN** 1975	Zadorozhnaya Mariya Aleksandrovna Nizhniy Novgorod	On 12/11/2018 the applicant was questioned and then beaten by officers at the Tuapse police station in order to force him to confess to a robbery: the officers tied his hands behind his back and punched and kicked him in the head. He was let go on the same day.	Forensic expert report no. 828/2018 of 13/11/2018 by the Tuapse Forensic Bureau: hematoma around both eyes, brain concussion.	On 13/11/2018 the applicant's sister and then on 16/04/2019 the applicant complained to the Tuapse district investigative committee/On 10/04/2019 refusal to open a criminal case/ On 16/04/2019 decision to open a criminal case/ Between 16/10/2019 and 01/07/2021 seven decisions to close the investigation for the lack of corpus delicti; each decision was overruled by the investigators' superiors.	On 02/07/2021 the Tuapse Town Court dismissed the applicant's appeal against the latest decision to close the investigation as the contested decision of 01/07/2021 had just been overruled.			26,000

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11.	3034/22 24/12/2021	**Yuriy Mikhaylovich VAKULENKO** 1987	Yastrebova Natalya Viktorovna Rostov-on-Don	At 00.30 a.m. on 15/05/2021 the applicant was detained by the Border Control Service of the FSB in Rostov-on-Don on suspicion of smuggling tobacco goods. He was allegedly subjected to beatings on various parts of the body and electrocuted once by a stun gun with the aim of extracting information. At 11.30 a.m. on the same day he was taken to a police station for drafting an administrative offense report and then to the Zheleznodorozhniy District Court in Rostov-on-Don, where he was convicted under Article 19.3 § 1 of the CAO and sentenced to 5 days of administrative detention.	Expert report no. 13 of 28/05/2021 by the 111th Main Centre of Forensics of the Ministry of Defence on the examination carried out on 20/05/2021: abrasion on the right shoulder measuring 0.5x0.4 cm, bruises on the right knee measuring 2x1.7 cm and on the left shin measuring 2x1 cm; the injuries could have originated between 5 to 9 days prior to the examination in the circumstances described by the applicant.	On 20/05/2021 complaint to the 314th military investigations department/on 31/05/2021 and 05/07/2021 refusals to open a criminal case as no crime had taken place: the applicant was interviewed and maintained his complaints; the implicated officers were also questioned and they either denied using any physical force (officer I.) or stated that the force had been used due to the applicant's resistance (officers B., S., F. and G.). No assessment of necessity or proportionality of the use of force was made.	On 15/10/2021 the Rostov-on-Don Garrison Military Court rejected the applicant's appeal contesting the last refusal/on 10/12/2021 the Southern Military Circuit Court upheld that decision.			6,500

[1] Plus any tax that may be chargeable to the applicants.